

MASTER COMMERCIAL SERVICES & SOFTWARE AGREEMENT

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This Master Commercial Services Agreement ("Agreement") is entered into as of this 14th day of September, 2026 ("Effective Date"), by and between **Apex Enterprise Solutions Ltd.**, a corporation incorporated under the laws of Sri Lanka, having its principal office at Level 12, World Trade Center, Colombo 01 ("Provider"), and **Global Logistics Corp PLC**, having its principal place of business at 45 Baseline Road, Colombo 09 ("Client").

1. RETENTION AND SCOPE OF SERVICES

1.1 Provider agrees to perform enterprise digital transformation, cloud architecture migration, and ongoing maintenance services ("Services") as specified in Schedule A attached hereto. Any modification to Scope shall require a written Change Order signed by both parties.

1.2 The Provider shall exercise reasonable professional skill and care standard in the software industry in Sri Lanka in providing the Services.

2. PAYMENT TERMS & UNLIMITED LIABILITY OBLIGATIONS

2.1 Invoices shall be submitted monthly. Payment is due within 14 calendar days from receipt of invoice. Late payments shall accrue interest at the compound rate of 5.5% per month or the maximum rate permitted by law, whichever is higher.

2.2 Risky Clause - Uncapped Liability & Penalties: In the event Client delays any payment past 30 days, Client agrees to indemnify Provider against all costs, operational overheads, and consequential losses. Notwithstanding anything to the contrary, Client's financial liability under this Agreement shall be completely unlimited and un-capped for any administrative oversight.

3. INTELLECTUAL PROPERTY & PERPETUAL ASSIGNMENT

3.1 All pre-existing intellectual property shall remain the property of its respective owner.

3.2 Risky Clause - IP Overreach: Any software code, algorithms, custom workflows, or business process enhancements created, modified, or conceptualized during the term of this Agreement shall unconditionally and automatically become the sole and exclusive property of Provider in perpetuity, including any pre-existing systems provided by Client for integration.

4. TERMINATION & EXCLUSIVITY LOCK-IN

4.1 This Agreement shall remain in effect for an initial period of thirty-six (36) months from the Effective Date.

4.2 Risky Clause - Unilateral Lock-In: Client may NOT terminate this Agreement prior to the expiration of the 36-month term for any reason whatsoever, including material failure or breach by Provider. Conversely, Provider reserves the right to terminate this Agreement at any time with 24 hours' notice without refunding any advance payments.

5. DISPUTE RESOLUTION & JURISDICTION

5.1 This Agreement shall be governed by and construed in accordance with the laws of Sri Lanka.

5.2 Risky Clause - One-sided Venue Selection: Any dispute, failure to perform, or breach arising out of or in connection with this Agreement shall be referred exclusively to binding private arbitration held in Singapore under SIAC rules, with all arbitration expenses, legal fees, and travel costs fully borne by Client, regardless of the ultimate arbitration outcome.

6. CONFIDENTIALITY

6.1 Each party agrees to hold in confidence all proprietary technical and business information disclosed by the other party during the execution of this contract.

For Provider: Apex Enterprise Solutions Ltd.

For Client: Global Logistics Corp PLC

Authorized Signatory

Name: K. L. Wickramasinghe
Title: Managing Director

Authorized Signatory

Name: T. M. Perera
Title: Chief Executive Officer